

21STLC01780 21STLC01780

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-08

Motion: DEFENDANT AND CROSSCOMPLAINANT'S NOTICE OF MOTION AND MOTION FOR MANDATORY DISMISSAL PURSUANT TO CODE OF CIVIL PROCEDURE §§ 583.310 AND 583.360

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Case Number: 21STLC01780 Hearing Date: September 8, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - CENTRAL DISTRICT

ROBERT BARE dba BARE LAW,

Plaintiff,

v.

MICHELLEI CEPHUS,

Defendant.

MICHELLEI CEPHUS

Cross-Complainant,

v.

ROBERT BARE dba BARE LAW, and DOES 1 through 50, inclusive,

Cross-Defendants.

)

CASE NO: 21STLC01780

[TENTATIVE] ORDER RE: DEFENDANT AND CROSSCOMPLAINANT'S NOTICE OF MOTION AND MOTION FOR MANDATORY DISMISSAL PURSUANT TO CODE OF CIVIL PROCEDURE §§ 583.310 AND 583.360

Dept. 731

September 8, 2026

8:30 a.m.

Matter No. 8

Moving Party: Defendant/Cross-Complainant, Michellei Cephus

Opposing Party: Plaintiff/Defendant, Robert Bare dba BARE LAW

Notice: OK

Background Facts

Pleadings

Plaintiff/Cross-Defendant Robert Bare d/b/a BARE LAW ("Cross-Defendant") sues Defendant/Cross-Complainant Michellei Cephus ("Cephus") pursuant to a February 4, 2021, Complaint alleging a single cause of action for breach of contract arising from allegations that Cephus failed to pay for legal services rendered and owes Bare \$3,475 in fees.

In turn, Cephus sues Bare pursuant to a November 3, 2023, First Amended Cross-Complaint ("FAXC") alleging claims of legal malpractice, breach of contract, and breach of fiduciary duty related to the services alleged to have been rendered in Bare's Complaint.

Motion Before the Court

Now before the Court is Cephus's August 5, 2026, motion for mandatory dismissal pursuant to Code of Civil Procedure sections 583.310 and 583.360 on the basis that the five-year rule relating to civil actions has been transgressed, supporting mandatory dismissal.

The motion is partially opposed by Bare, who does not object to the Court hearing the motion to dismiss but argues that the motion should be heard on October 13, 2026, in accordance with instructions issued by this Court on July 28, 2026.

Motion to Dismiss

After review, as requested in Bare's opposition, and to bring these proceedings in conformity with this Court's July 28, 2026, Order (at p. 6 ["[o]nce the motion has been scheduled, Cross-Complainant shall contact the courtroom clerk to have the matter placed on the Court's 10/13/2026 calendar"]), the Court CONTINUES the hearing on Cephus's motion to dismiss to October 13, 2026, to be heard at 8:30 AM, with appearances required from the parties or counsel.

Bare may file a full opposition and Cephus may file a reply consistent with Code of Civil Procedure section 1005.

Defendant/Cross-Complainant Michellei Cephus is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 8, 2026 _____

MARK C. KIM

Judge of the Superior Court